

EXHIBIT K

New York Statutes Annotated - 2019

McKinney's Consolidated Laws of New York Annotated

Vehicle and Traffic Law (Refs & Annos)

Chapter Seventy-One. Of the Consolidated Laws (Refs & Annos)

Title III. Safety Responsibility; Financial Security; Equipment; Inspection; Size and Weight; and Other Provisions

Article 10. Dimensions and Weights of Vehicles

McKinney's Vehicle and Traffic Law § 386

§ 386. Motor vehicle sound level limits

Currentness

1. As used in this section;

a. A-weighted sound level shall mean the sound pressure level measured by the use of an instrument with the metering characteristics and A-weighting frequency response prescribed for sound level meters.

b. Combination of vehicles shall mean any device consisting of a motor vehicle and one or more trailers drawn by such motor vehicle.

c. Sound pressure level shall mean twenty times the logarithm to the base ten of the ratio of the root mean squared pressure of a sound to a reference pressure of twenty micropascals. The unit applied to this measure shall be the decibel (dB).

2. This section shall apply to the total sound level emitted from a motor vehicle or combination of vehicles.

3. Unlawful acts.

a. It shall be unlawful for any person to operate or cause to be operated on a public highway any motor vehicle or combination of vehicles with a maximum gross weight in excess of ten thousand pounds, at any time, under any condition of grade, load, acceleration or deceleration in such a manner as to exceed the applicable A-weighted sound level set forth in table I. The maximum allowable sound levels in table I are based on a sound level measured at, or adjusted to, a distance of fifty feet from the center of the lane in which the motor vehicle is traveling.

TABLE I

**MAXIMUM ALLOWABLE A-WEIGHTED
SOUND LEVELS****Maximum Speed Limit**

35 miles

per hour	over 35
or less	miles per hour
86dB(A)	90dB(A)

b. In addition, it shall be unlawful for any person to operate or cause to be operated on a public highway any motor vehicle or combination of vehicles with a maximum gross weight in excess of ten thousand pounds and equipped with an engine speed governor, which generates an A-weighted sound level in excess of eighty-eight dB(A) measured at, or adjusted to, a distance of fifty feet from the longitudinal centerline of the vehicle, when the engine of such vehicle is accelerated from idle with a wide open throttle to governed speed with the vehicle stationary, transmission in neutral and clutch engaged.

c. It shall be unlawful for any person to operate or cause of be operated on a public highway any motor vehicle or combination of vehicles, except motorcycles, with a maximum gross weight of ten thousand pounds or less, at any time, under any condition of grade, load, acceleration or deceleration in such a manner as to exceed the applicable A-weighted sound level set forth in table II. The maximum allowable sound levels in table II are based on a sound level measured at, or adjusted to, a distance of fifty feet from the center of the lane in which the motor vehicle is traveling:

TABLE II

MAXIMUM ALLOWABLE A-WEIGHTED SOUND LEVELS**Maximum Speed Limit**

35 miles	
per hour	over 35
<u>or less</u>	<u>miles per hour</u>
76 dB(A)	82 dB(A)

d. It shall be unlawful for any person to operate or cause to be operated on a public highway any motorcycle, at any time, under any condition of grade, load, acceleration or deceleration in such a manner as to exceed the applicable A-weighted sound level set forth in table III. The maximum allowable sound levels in table III are based on a sound level measured at, or adjusted to, a distance of fifty feet from the center of the lane in which the motorcycle is traveling.

TABLE III

MAXIMUM ALLOWABLE A-WEIGHTED SOUND LEVELS**Maximum Speed Limit**

35 miles	
per hour	over 35
<u>or less</u>	<u>miles per hour</u>
82 dB(A)	86 dB(A)

4. The commissioner of environmental conservation shall promulgate regulations establishing the measurement procedures and instrumentation to be utilized in the enforcement of this section.

a. These procedures shall allow, to the extent feasible, motor vehicle sound measurements to be accomplished in reasonably confined areas such as residential areas of urban cities, and may provide for sound measurement at distances other than fifty feet and in the vicinity of sound reflecting surfaces.

b. The regulations shall take into consideration recognized scientific and professional standards for the measurement of vehicular sound levels.

5. The provisions of this section shall not apply to vehicles and implements or combinations thereof used solely for farm purposes, nor to authorized emergency vehicles.

6. Nothing in this section shall be construed as limiting or precluding the enforcement of equipment requirements or any other provisions of law relating to motor vehicle noise.

7. At intervals of not more than two years, the commissioner of environmental conservation shall report to the governor and the legislature on the current state of the art of motor vehicle sound level limitations and recommend changes as necessary.

Credits

(Added L.1976, c. 543, § 2. Amended L.1980, c. 315, §§ 1, 2.)

HISTORICAL AND STATUTORY NOTES

L.1976, c. 543 legislation

L.1976, c. 543, § 1, eff. Apr. 1, 1977, provided:

“Motor vehicles are an indispensable segment of the transportation system of the state of New York. However, the attendant sound emissions form a major component of the prevailing environmental noise levels. Motor vehicle generated noise adversely affects the general health and welfare of the citizens throughout the state. All activities, including commerce, education and recreation, are impacted through the interference of this pollutant with the fundamental human requirements of communication and sleep. In view of available and economically feasible techniques for motor vehicle noise control, continuation of current vehicular sound levels without abatement would be an unreasonable burden on the citizens of the state and their environment. Failure to impose reasonable and effective limitations on vehicular noise levels at this time would also result in further growth of public opposition to the orderly development and utilization of motor vehicle transportation.”

Derivation

Former section 386, added L.1965, c. 1053, § 1, and repealed by L.1976, c. 543, § 2.

CROSS REFERENCES

Mufflers and exhaust systems, see Vehicle and Traffic Law § 375.

Snowmobiles, limitation of noise caused by, see PRHPL § 25.17.

RESEARCH REFERENCES

Encyclopedias

8 N.Y. Jur. 2d Automobiles and Other Vehicles § 231, Motor Vehicle Noise Limits.

8 N.Y. Jur. 2d Automobiles and Other Vehicles § 233, Motorcycles.

Treatises and Practice Aids

1 Environmental Regulation of Land Use § 11:12 (2017), State Regulation.

NOTES OF DECISIONS

Construction with other laws 1

Local laws 2

1 Construction with other laws

Section 375 prohibiting operation of vehicles with excessively noisy mufflers, which required each motorist to minimize the noise in his particular vehicle, could stand together with former section 386 which set up limits beyond which no vehicle noise could go, so that enactment of this was not an attempt to remedy alleged defects in section 375. *People v. Byron*, 1966, 17 N.Y.2d 64, 268 N.Y.S.2d 24, 215 N.E.2d 345. Automobiles ~~§ 324~~

2 Local laws

A town may adopt an ordinance to regulate motor vehicle noise emissions only insofar as such ordinance is limited to interstate motor carriers governed by Federal regulations and is identical with the Federal regulations. 1976, Op.Atty.Gen. (Inf.) 194.

McKinney's Vehicle and Traffic Law § 386, NY VEH & TRAF § 386

Current through L.2018, chapters 1 to 522.

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